

## SETTLEMENT AGREEMENT AND GENERAL RELEASE

This Settlement Agreement and General Release (the "Agreement") is entered into as of September 13, 2025 by Rafael Mendoza ("Releasor") and Danilo Dimaculangan and its insurer, Farmers Insurance Exchange (together, the "Released Parties"), regarding claim number 48-906398-A.

### 1. Settlement Payment

The Released Parties shall pay the total sum of \$123,300.00 (the "Settlement Payment") by check payable to "Alvarado & Sung LLP Client Trust Account" within thirty (30) days after receipt of this signed Agreement and a completed IRS Form W-9.

### 2. Release of All Claims

Releasor releases and forever discharges the Released Parties from any and all claims, known or unknown, arising out of the incident, including claims for bodily injury, property damage and loss of consortium.

### 3. Waiver of Civil Code Section 1542

Releasor expressly waives the protection of California Civil Code section 1542, which provides: "A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party."

### 4. Liens and Reimbursement Claims

Releasor represents that 1 lien(s) totaling \$49,340.40 have been asserted against the recovery. Releasor, through counsel, shall satisfy all such liens from the Settlement Payment and shall indemnify the Released Parties against them. No statutory lien asserted.

### 5. Confidentiality

The amount and terms of this settlement are confidential and shall not be disclosed except to tax advisors, lienholders, or as required by law.

### 6. No Admission of Liability

This Agreement is a compromise of disputed claims and is not an admission of liability by any party.

RELEASOR: \_\_\_\_\_ Rafael Mendoza APPROVED AS TO FORM:  
\_\_\_\_\_ Marisol Alvarado, Alvarado & Sung LLP